DATA SHARING AGREEMENT

Between

(1) Department of Health and Social Care for the purpose of the Independent Inquiry into the issues raised by the David Fuller case ('the Inquiry'), and

(2) London Borough of Camden

(each a "Party" and together, the "Parties")

Concerning information sharing in respect of care of the deceased at mortuary and/or body store facilities provided by London Borough of Camden or provided by an external party with whom the local authority has an arrangement.

1	**THIS DATA SHARING AGREEMENT** is agreed on 9th July 2024
2	**Definitions** See Annex A
3	**Background** 3.1 This DSA reflects the arrangements for the Local Authority to share information with the Inquiry. The information sharing will assist the Inquiry to fulfil its statutory and regulatory functions with regards to investigating care of the deceased 3.2 This DSA explains how the Parties will comply with, and cooperate with one another in, their respective responsibilities under the Data Protection Legislation and respect Data Subjects' rights when the Local Authority shares Personal Data with the Inquiry.
4	**Purpose and Objectives of the Information sharing** 4.1 The information to be shared under this DSA is set out at clause 6 and shall be shared for the purposes of an investigation by the Inquiry. The Inquiry was commissioned by the Secretary of State for Health and Social Care, The Rt Hon Sajid Javid on 8 November 2021. 4.2 The Terms of Reference of the Inquiry are published in Parliament and on the Inquiry website. 4.3 Information sharing from the Local Authority to the Inquiry is necessary to assist the Inquiry to carry out its functions.

5	**Legal basis to receive, share and analyse data** 5.1 The Inquiry will process Personal Data fairly and lawfully in accordance with Data Protection Legislation and Article 6(1)(e) and Articles 9(2)(g) and (i) of the UK GDPR, and the Inquiry's Privacy Notice (see section 9 below). 5.2 This is necessary for reasons of substantial public interest and was commissioned by the Department of Health and Social Care. This should ensure high standards of quality and safety of health care are met, and that suitable and specific measures are in place to safeguard the rights and freedoms of the data subjects.
6	**Data Controller(s)** 6.1 The Inquiry will be the Data Controller for the information once disclosed to it by the Local Authority. The Inquiry is the Data Controller for the purposes of fulfilling its Terms of Reference.
7	**Data items to be processed** 7.1 The Local Authority will share Information that is relevant to the Inquiry in electronic form. 7.2 No patient data will be required, but there may be occasions where the Inquiry requires personal data to be shared, such as names and roles. This will be requested on a case by case basis, with prior agreement on whether any of the information should be redacted beforehand. 7.3 The Inquiry reserves the right to request and review unredacted copies of material in order to agree to any redactions applied. 7.4 Information will be shared by the Local Authority with the Inquiry for the duration of the Inquiry in accordance with clause 11. 7.5 The Inquiry will publish a report to fulfil the ToR, which may include data received from the Local Authority if it is considered necessary. **Is there any interference with Article 8 of the European Convention on Human Rights, Schedule 1 of the Human Rights Act 1998?** 7.6 The Parties consider that any interference with any individual's rights under Article 8 of the European Convention on Human Rights by virtue of complying with this DSA is in accordance with the law, necessary in a democratic society in the interests for the protection of health or morals, and proportionate.

8	**How will the data sharing be carried out?** 8.1 Information will be shared by the Local Authority electronically via the secure web-based file sharing kahootz platform. This information will only be visible to the person(s) who uploaded it and the Inquiry team. 8.2 The Inquiry will maintain appropriate security measures for the information held by it. 8.3 The Parties will comply with Data Protection Legislation and take account of good practice and Codes of Practice issued by the Information Commissioner. 8.4 The Local Authority shall provide a list of all material shared with the Inquiry. 8.5 No data shall be processed outside of the EEA. 8.6 Information on the security of the kahootz platform Data Security | Keep Your Data Secure on the Cloud | Kahootz
9	**Privacy notices – articles 13 & 14** 9.1 The privacy notice is published on the Inquiry website: Privacy Notice – The Independent Inquiry into the issues raised by the David Fuller case (independent-inquiry.uk).
10	**Specify the procedures for dealing with the exercise of subject rights under Chapter III of the UK GDPR, FOIA access requests, or complaints or queries, from Data Subjects and members of the public** 10.1 The Parties will work together in a timely manner to address any subject access request, complaint or any other attempt to exercise rights made by a Data Subject regarding Processing carried out on information further to this DSA. 10.2 It will be the responsibility of the Party to whom a request is originally directed to respond to it based on the Personal Data it processes. 10.3 Nothing in this DSA will prevent the parties from complying with their respective duties under the Data Protection Legislation. 10.4 The Parties shall keep each other up to date about the amendment, erasure, or restriction of use of Personal Data that has been shared under this DSA through the contacts found in clause 23 of this DSA.. 10.5 Where a party to this agreement is subject to the requirements of the Freedom of Information Act 2000 (FOIA) all Parties shall assist and co-operate with the other to enable the other Party to comply with its obligations under FOIA. 10.6 Where a Party receives a request for information in relation to the information which

	it received from the other Party it shall contact the other Party within five working days after receipt of the request. 10.7 Each Party will provide all necessary assistance as reasonably requested by the other Party to enable that Party to respond to a request for information within the time for compliance set out in section 10 of the FOIA. 10.8 Each Party shall be mindful of the Freedom of Information Act 2000 as amended, clause 22(1) and 22(2) (Information intended for future publication), when considering responses to any request for information received ahead of the publication of the Inquiry's reports.
11	**Specify the retention period for the information to be shared** 11.1 Only information that is required for the purposes of fulfilling the Terms of Reference of the Inquiry will be retained in accordance with the Inquiry Privacy Notice. Information held by the Inquiry team containing personal details will be destroyed following completion of the Terms of Reference of the Inquiry.
12	**Specify the process for deleting/returning/safely destroying the information when it is no longer required (this should include provision for notification of such deletion/destruction)** 12.1 All copies of records disclosed by the Local Authority will be securely and confidentially destroyed/deleted following completion of the Terms of Reference of the Inquiry, in accordance with ISO 15489-1:2016 (for paper records) and ISO 27001 (for digital records). 12.2 Documents will not be destroyed if they are preserved for the public record, where an individual requests the return of an original document or where the Inquiry is required to share or keep a document to comply with any regulation or law.
13	**Specify any particular obligations on <u>all</u> parties to the DSA:** 13.1 The Inquiry will use the information shared solely for the purposes identified and shall not Process the information for any other purposes; **Each Party to this DSA will:** 13.2 comply with its obligations under the Data Protection Legislation, the Freedom of Information Act 2000 and the Environmental Information Regulations 2004 and comply with Data Guidance. The Parties acknowledge that once a Party has received data under this DSA it will be responsible for ensuring that its own Processing of that data complies with this clause; 13.3 agree to treat the data received by them under the terms of this Protocol as

	confidential and shall safeguard it accordingly. 13.4 notify the other Parties to this DSA of any suspected or actual breach of this DSA connected to the sharing of information under this DSA within 24 hours of first suspecting the breach; the Parties will decide who will take the lead on addressing the breach and on whether the breach needs to be reported to the Information Commissioner or to the individuals concerned without undue delay and usually within 72 hours of having become aware of the breach. 13.5 notify the other parties to this DSA of any complaint received from any person about the sharing of data under this DSA or any correspondence from the Information Commissioner regarding the sharing of data under this DSA.
14	**Liabilities** 14.1 The Parties agree that they are separately liable for any costs, expenses or damages incurred as a result of the data sharing set out in this DSA. 14.2 The Parties should have appropriate data security governance to ensure the risk of data breaches are mitigated. Where a breach is identified the Party at fault will be fully liable.
15	**Reconciliation of Disagreement** 15.1 The Parties shall use all reasonable efforts to negotiate in good faith and settle any dispute that may arise out of or relate to this DSA. 15.2 If the named Lead Contacts in either organisation cannot resolve any such dispute informally, the dispute will be referred to a senior representative nominated by each Party who will meet within 10 working days (or such period as agreed at the time) to try and resolve the dispute.
16	**Warranties** 16.1 In addition to warranties given elsewhere in this DSA, each Party further warrants that it will discharge its obligations under this DSA with all due skill, care and diligence.
17	**Data Protection Officers** 17.1 The Data Protection Officer for the Inquiry is [redacted]. 17.2 The Data Protection Officer for the Local Authority is Andrew Maughan

18	**Commencement of DSA** The terms of this DSA shall apply from 9th July 2024
19	**Review of the DSA** 19.1 This DSA will be kept under review by dialogue between the Parties, on an annual basis. In particular, the review shall cover: 19.1.1 Any incidents or complaints involving the information, and whether further measures need to be taken to avoid similar incidents arising in the future; 19.1.2 The relevance and accessibility of fair processing information provided to data subjects; 19.1.3 Whether the sharing of information remains necessary and proportionate to achieve the purpose specified in clause 3.
20	**Lead contacts responsible for the development and review of this DSA** Inquiry contact - [redacted] [Deputy Secretary and DPO] And Local Authority contact – Name: Jamie Akinola Title: Director of Public Safety Contact details:Jamie.akinola@camden.gov.uk
21	**Termination** 20.1 This DSA shall apply from the date set out at clause 18and shall continue until the Parties agree to end this DSA. 20.2 The provisions of this DSA which place obligations on the Parties in respect of the Processing of personal information shall continue until such time as the Processing of the personal information received pursuant to this DSA ceases.
22	**Variation** Any proposed changes to this DSA, including the addition or removal of Parties, the purposes of the information sharing, the nature or type of information shared or manner in which the information is to be Processed shall be notified promptly to the persons named in clause 20 so that the impact of the proposed changes can be assessed.

Local authority Information Governance Declarations By signing this protocol on behalf of London Borough of Camden the responsible person confirms that:

- ✓ This protocol has been reviewed by London Borough of Camden Legal Advisors
- ✓ This protocol has been approved by the local authorities Data Protection Manager

Signature of Data Protection Officer (Inquiry): [redacted]
Name of Data Protection Officer: (PRINT) [redacted]
Date: 11 July 2024

Signature of Director of Public Safety(Information Asset Owner) (Local Authority): [redacted]
Name of Information Asset Owner Jamie Akinola, Director of Public Safety. LB Camden.
Date: 11 July 2024

Annex A

Definitions

In this DSA the following words have the following meanings:

Data Controller	Means a person who determines the purposes and means of the processing of personal data and shall take the meaning given in the Data Protection Legislation. The parties have determined they are each Data Controllers when sharing Personal Data with one another further to this DSA.
Data Guidance	Means any applicable guidance, guidelines, direction or determination, framework, code of practice, standard or requirement regarding information governance, confidentiality, privacy or compliance with the Data Protection Legislation (whether specifically mentioned in this DSA or not) to the extent published and publicly available or their existence or contents have been notified to the Inquiry by any relevant organisation and Regulatory or Supervisory Body.
Data Protection Legislation	Means (i) the DPA 2018 (ii) the UK GDPR (which means Regulation (EU) 2016/679 of the European Parliament and of the Council of 27th April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (General Data Protection Regulation) as it forms part of the law of England and Wales, Scotland and Northern Ireland by virtue of section 3 of the European Union (Withdrawal) Act 2018 and (iii) all applicable Law concerning privacy, confidentiality or the processing of personal data including but not limited to the Human Rights Act 1998, the Health and Social Care (Safety and Quality) Act 2015, the common law duty of confidentiality and the Privacy and Electronic Communications (EC Directive) Regulations.
Data Protection Officer or **DPO**	Shall take the meaning given in the Data Protection Legislation and means the person who will monitor internal compliance, inform and advise on your data protection obligations, provide advice regarding Data Protection Impact Assessments (DPIAs) and act as a contact point for data subjects and the Information Commissioner's Office (ICO).
Data subject	Has the meaning given in data protection Laws.

Personal Data	Means information which relates to a living individual who can be identified: (a) from those data; or (b) from those data and other information which is in the possession of, or is likely to come into the possession of, the Data Controller and includes any expression of opinion about the individual and indications of the intentions of the Data Controller or any other person in respect of the individual. For the purposes of this DSA, references to “Personal Data” and shall take the meaning given in the Data Protection Legislation.
Processing (and cognate terms)	Shall take the meaning given in the Data Protection Legislation and includes collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction or Personal Data.
Data Processor	Shall take the meaning given in the Data Protection Legislation and means a person who processes personal data on behalf of the Data Controller.
Party	A party to this DSA.

Annex B

Inquiry Terms of Reference

Background

1. David Fuller (DF), an electrical maintenance supervisor firstly at Kent and Sussex Hospital and then later at Tunbridge Wells Hospital, was arrested in December 2020 for the murders of two women in 1987. When police searched his house, they found images and videos of him committing sexual offences on the bodies of at least 100 women and children at the Maidstone and Tunbridge Wells NHS Trust mortuary since 2008.

2. In January 2021, DF pleaded not guilty to the murders. He was later charged with the mortuary offences. In October 2021, he pleaded guilty to the mortuary offences. In November 2021, he pleaded guilty to the murders.

3. Maidstone and Tunbridge Wells NHS Trust began an investigation into the activities of DF overseen by an independent Chair, Sir Jonathan Michael. On 8 November 2021, the Right Honourable Sajid Javid MP, Secretary of State for Health and Social Care announced that this was to be replaced with an independent inquiry given the scale and nature of the offences. The Inquiry has not been set up under the Inquiries Act 2005 and will be adopting a non-judicial approach to its work.

Terms of Reference

4. The Inquiry will be split into two phases:

    - an initial report, on matters relating to Maidstone and Tunbridge Wells NHS Trust, reporting by the middle of 2022, and

    - a final report, looking at the broader national picture and the wider lessons for the NHS and for other settings, reporting by the middle of 2023.

5. The Inquiry will review DF's unlawful actions, how he was able to carry these out, why his actions went apparently unnoticed, and will make recommendations with the aim of preventing anything similar happening again.

6. An important part of the Inquiry is to afford the families who have been affected by DF's offending an opportunity to be heard and for the Inquiry to be informed by this. The Inquiry will preserve the anonymity of families throughout the course of its work. Staff of the Trust and of DF's private sector employers who have been affected by DF's actions will also have an opportunity to share their experiences with the Inquiry. The Inquiry will make sure that families and others affected by the actions of DF can share their experiences and information with it in ways that are supportive and sensitive.

7. The Inquiry will also consider evidence and information from other interested parties, including, for example, Maidstone and Tunbridge Wells NHS Trust and its predecessors ('the Trust'), relevant regulatory bodies and subject matter experts. All interested parties are required and expected to cooperate with the inquiry as is normal, professional practice. Findings and recommendations from previous relevant reports will also be considered in the work of the Inquiry.

8. The Inquiry will treat all information and personal data received in accordance with all relevant legal and regulatory requirements, including the UK General Data Protection Regulation (GDPR).

9. The Inquiry will ensure that the families of victims are kept informed of progress. The Inquiry team will remain accessible throughout.

The issues the Inquiry will consider in each phase, but is not limited to, are as follows

Phase 1

- To consider the process by which DF was recruited and employed by the NHS and by private sector facilities maintenance service providers during the period 1989 to 2020 and whether appropriate and adequate checks were carried out prior to and during his employment, whether the current checks are appropriate for individuals with access to mortuary facilities, and whether risks associated with those checks were managed.

- To determine what access DF was given to the mortuary and other areas of the Trust, and whether this was subject to usual or appropriate supervision, oversight and assurance, including analysis of swipe card activity and CCTV.

- To identify any evidence of other inappropriate or unlawful activities by DF elsewhere on Trust premises.

- To review any evidence of complaints, concerns or incidents concerning DF's behaviour at the Trust, and how they were addressed by the Trust and his private sector employers.

- To consider whether the Trust's arrangements for management of the mortuary, including security and access, to safeguard the bodies of the deceased, were in accordance with Human Tissue Authority (HTA) standards, any relevant guidance or regulatory requirements and any relevant recommendations from other inquiries.

- To consider whether arrangements for post-mortem examinations were satisfactory.

- To examine inspection reports of the mortuary by the HTA and any other regulator, and the associated assurance processes.

- To consider whether the Trust's Board received sufficient assurance on the issues raised by the case of DF.

- To examine arrangements for transfer of the deceased between the Trust and other organisations, for example local funeral directors and to identify whether concerns were, or should have been raised.

Phase 2

- To consider whether procedures and practices in hospital settings, including in the private sector, where bodies of the deceased are kept, safeguard the security and dignity of the deceased, and would prevent a recurrence of matters raised by the case of DF.

- To consider whether procedures and practices (including the use of locum Anatomical Pathology Technologists) in non-hospital settings, including local authority mortuaries, funeral directors, the

NHS ambulance service, medical schools, temporary mortuaries, direct funeral companies and hospices, where bodies of the deceased are kept, safeguard the security and dignity of the deceased and would prevent a recurrence of matters raised by the case of DF.

- To consider the role of regulators and their use of regulatory measures in assuring that mortuary practices safeguarded the security and dignity of the deceased in all settings, and hence consider the effectiveness of the national regulatory regime.

- To consider any other issues that arose during Phase 1 of the Inquiry.

General

10. The Inquiry will

    - Produce a Phase 1 report on its findings and recommendations on issues arising from its consideration of events at Maidstone and Tunbridge Wells NHS Trust and identify areas of concern for the wider NHS to be aware.

    - Produce a final report which will provide an overview of the information it has reviewed, and which will set out the Inquiry's findings and its recommendations.

    - Publish anonymised accounts, setting out the experiences of the families affected by DF's offending and inappropriate behaviour, and the impact this has had on them.

    - Escalate any matters it comes across that require immediate attention to the relevant authorities.

    - Report any instances of apparent collusion or other conduct of concern (including conduct that indicates the potential commission of criminal or disciplinary offences, or breach of professional codes of conduct) to the relevant employer(s), professional or quality regulator(s), and/or the police for their consideration. The Inquiry does not have the power to impose disciplinary sanctions or make findings as to criminal or civil liability.

11. The Inquiry will aim to make its initial report to the Secretary of State for Health and Social Care by the middle of 2022 and its final report with its findings and recommendations by the middle of 2023. The Secretary of State for Health and Social Care will make arrangements for their presentation to Parliament.

12. Although the Inquiry will be restricted to matters concerning mortuary practices in England, its findings and recommendations may have relevance across the United Kingdom.

Addendum

This is an addendum to the terms of reference that were published by the Inquiry on 23 February 2022. The addendum relates to points 4 and 11 of the terms of reference.

New information has been provided to the Inquiry. The Inquiry will investigate this new information in line with its terms of reference which include assessment of the management of the mortuary, including the arrangements for security and access necessary to safeguard the bodies of the deceased.

This further investigation means that the Inquiry will now be unable to publish its initial report on matters relating to Maidstone and Tunbridge Wells NHS Trust before the Autumn 2023. A final report, looking at the broader national picture and the wider lessons for the NHS and for other settings is planned for publication in 2024.

The Inquiry will present the findings of both reports to the Secretary of State for Health and Social Care, who will make arrangements for their presentation to Parliament.